

2024

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Recommended Citation

Marcia Goldsmith & Karen Sanner, *Distraction or Necessity: A Post-Pandemic Examination of Digital Devices in the Law School Classroom*, 68 St. Louis U. L.J. (2024).

Available at: <https://scholarship.law.slu.edu/lj/vol68/iss3/10>

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**DISTRACTION OR NECESSITY: A POST-PANDEMIC
EXAMINATION OF DIGITAL DEVICES IN THE LAW SCHOOL
CLASSROOM**

MARCIA GOLDSMITH* AND KAREN SANNER**

ABSTRACT

Digital devices are a constant presence in the law school classroom; however, faculty members and students report mixed feelings about the role of digital devices in the classroom learning experience. While data suggests that use of digital devices has a deleterious effect on acquiring and retaining information, digital device usage is sometimes helpful and often necessary to facilitate learning in the modern law school classroom.

*This article draws upon ideas from Professor James M. Lang in his book *Distracted: Why Students Can't Focus and What You Can Do About It* (Hachette Book Group Inc. 1st ed. 2020), identifies the reasons that digital devices distract our brains and suggests a context driven approach to the use of digital devices in a law school classroom. Part I will discuss the science of learning and distraction, Part II will discuss the various approaches to technology use in the classroom, Part III will discuss developing and implementing a technology use policy for the legal skills classroom, and Part IV will discuss the benefits of teaching students to be good stewards of technology as they enter the legal profession.*

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INTRODUCTION

Digital devices have been a constant presence in the college, graduate, or professional school classroom since the early part of this century.¹ However, faculty members report mixed feelings about student use of digital devices as part of the classroom learning experience.² While some faculty welcome the use of digital devices as a helpful classroom learning tool, other faculty place a complete prohibition on students using these devices, citing distractions for both the student and the teacher.

In particular, as faculty who teach first-year legal skills courses, we have wrestled with the contradictions that digital devices present in our classrooms.³ On one hand, digital devices are necessary to teach our students foundational skills such as legal research, which use online research tools. On the other hand, digital devices, with easy access to non-course related information, present a unique distraction for our students and challenge our ability to keep students focused.

Law school faculty policies on the use of digital devices vary widely. From a total ban on all digital devices in the classroom to an open policy lacking any restrictions, faculty continue to explore options on the best use of technology in their classrooms. This article will explore the range of policies used by faculty to address the use of technology in the classroom, discuss the truths and myths about the efficacy of technology as part of the classroom experience, and provide advice on creating policies for technology use in the law school classroom. Part I will discuss the science of learning and distraction, Part II will discuss the various approaches to technology use in the classroom, Part III will discuss developing and implementing a technology use policy for the legal skills classroom, Part IV will discuss the benefits of teaching students to be good stewards of technology as they enter the legal profession.

1. Kristen Murray, *Take Note: Teaching Law Students to be Responsible Stewards of Technology*, 70 CATH. U. L. REV. 201, 202 (2021). See also Eric DeGroff, *The Dynamics of the Contemporary Law School Classroom: Looking at Laptops Through a Learning Style Lens*, 39 U. DAYTON L. REV. 201, 204 (2014) (“The use of laptops in law school classrooms has become so common that the Law School Survey of Student Engagement recently characterized the phenomenon as ‘*de rigueur*.’”)

2. Susan Dynarski, *Laptops are Great. But Not During a Lecture or Meeting*, N.Y. TIMES (Nov. 22, 2017), <https://www.nytimes.com/2017/11/22/business/laptops-not-during-lecture-or-meeting.html> [<https://perma.cc/R3PE-2ZH8>]; JAMES M. LANG, DISTRACTED: WHY STUDENTS CAN'T FOCUS AND WHAT YOU CAN DO ABOUT IT 60-61 (Hachette Book Group Inc., 1st ed. 2020).

3. At Saint Louis University School of Law, our legal skills class is called Legal Analysis Research and Communication (LARC I and II). In other schools, the class is known by names such as Legal Research and Writing (LRW), Legal Process (LP), or Legal Skills, among other names. For the purposes of this article, we will use legal skills as a general designation for this required first-year course.

PART I - THE COGNITIVE SCIENCE OF DISTRACTION

Evaluating the usefulness of digital devices in the classroom requires a clear view of how we, as humans, attend to and react to our environment. Our brains are built to be easily distracted. In fact, humans are distractable for a very good evolutionary reason—survival.⁴ While it is true that focused attention was necessary for ancient humans to achieve important objectives like hunting and gathering, they also needed the ability to stay alert for potential dangers in their environment.⁵ This acquired ability to remain vigilant about potential dangers, accompanied by an ability to quickly switch focus, was necessary to keep early humans alive and flourishing.⁶ This distractibility was not lost as our species evolved but has remained with us into modern times. While the ability to quickly focus our attention on impending danger was useful for our ancient ancestors, it is less useful in a modern higher education classroom. In fact, our ability to be distracted creates challenges for even the most dedicated learner who comes to class prepared, consistently engages in the learning experience during class, and follows up by actively processing the classroom material.

Understanding that human distractibility is part of human evolution leads to a basic truth—distractable students have been in classrooms since students have been learning in classrooms, long before the technological advances of this century. Undergraduate and graduate-level faculty teaching in higher education one hundred years ago complained of doodling and daydreaming students who weren't paying attention during class lectures.⁷ However, new data shows us that it has become increasingly difficult for a student to ignore the distractions inherent in digital devices. Studies show that digital devices with online access are very good at grabbing and keeping our attention because they are designed to do just that.⁸ In today's information driven society, social media products such as Facebook, Twitter, and Tik Tok base their financial success on our distractable brains.⁹

Using digital devices, especially in a learning environment, may result in distractions for students and faculty in the classroom.¹⁰ Are distractions detrimental to the learning process? Yes, according to cognitive scientists and

4. See LANG, *supra* note 2, at 25-40.

5. *Id.*

6. *Id.*

7. See generally James Levy, *Teaching the Digital Caveman: Rethinking the Use of Classroom Technology in Law School*, 19 CHAP. L. REV. 241 (2016).

8. See NICHOLAS CARR, *THE SHALLOWS: WHAT THE INTERNET IS DOING TO OUR BRAINS* 116-17, 120, 194 (W. W. Norton & Company, 1st ed. 2011) (arguing that every visit to the internet trains our brains to be distracted); see also Levy, *supra* note 7, at 263.

9. TIM WU, *THE ATTENTION MERCHANTS: THE EPIC SCRAMBLE TO GET INSIDE OUR HEADS* 318-27 (Knopf ed., 1st ed. 2016).

10. LANG, *supra* note 2, at 62-63. Lang also notes that faculty are equally distracted by students' use of digital devices. *Id.*

education specialists who have been studying how our brains acquire and retain information. Not surprisingly, constant outside distractions during the learning process are detrimental to acquiring or retaining information. Let's look at the most important skill that we teach first-year law students—especially in the first year legal skills class—: critical thinking and problem solving, also known as “thinking like a lawyer.”¹¹ Students often enter law school with little prior experience in either deep critical thinking or complex problem-solving. Learning to process information and catalog it in a new way is difficult, so students need focused attention in the classroom to facilitate the deep critical thinking required of a law student.

But the brain is a complicated organ. Cognitive scientists have been working to understand how the brain receives information and how it processes that information.¹² Research shows that human learning is essentially a three-phase process.¹³ First, “learning starts by attending to our experiences.”¹⁴ Those experiences can be any kind of sensory input including hearing, seeing, smelling, or touching.¹⁵ Next, after paying attention to the information, the brain processes and incorporates it into our existing knowledge framework.¹⁶ Third, and finally, the brain later retrieves the newly learned data point from our memory after the initial attention and processing.¹⁷

Applying the three phrases of learning to a typical experience in the first-year legal skills classroom shows us how the process works. First, the professor may give a lecture, maybe including a power point presentation, on the concept of synthesizing multiple cases on the same legal topic to form a consistent legal rule. This requires the student to pay attention to the material—here, the steps of rule synthesis—as the intake point in the learning process (the attention phase). Next, following the lecture, the professor may assign a small group project, where students work together to synthesize multiple opinions into a coherent legal rule. In this phase, the students use the exercise to practice rule synthesis (the processing phase). Finally, the professor provides a hypothetical legal problem, and asks the students to analyze the problem in the context of the synthesized rule. In this phase, students must retrieve the learned information

11. Levy, *supra* note 7, at 245 n.11, quoting WILLIAM M. SULLIVAN ET AL., EDUCATING LAWYERS: PREPARATION FOR THE PROFESSION OF LAW 13, 33, 87, 195 (The Carnegie Foundation for the Advancement of Teaching, 1st ed. 2007) (“The Carnegie report on legal education finds that the ‘cognitive apprenticeship’ in how to ‘think like a lawyer’ is the primary goal of the first-year curriculum.”).

12. Levy, *supra* note 7, at 255.

13. See LANG, *supra* note 2, at 44-48.

14. Levy, *supra* note 7, at 256.

15. *Id.*

16. LANG, *supra* note 2, at 44-48.

17. *Id.*

about rule synthesis and use it to provide advice to a hypothetical client (the retrieval phrase).

All three phases of learning are important, but without the “attention” stage of learning, processing and retrieving are not possible.¹⁸ So, without true attention to the material by the learner, no real learning takes place.¹⁹ Essentially, the distraction creates a firewall between the material and the learner. Given the multiple types of technology available to students in the law school classroom, the distractions presented by digital devices have the potential to derail the learning process from the beginning.

A related issue is the misconception of multi-tasking. The idea that humans are able to process more than one thinking task at a time is a myth.²⁰ Multi-tasking, in popular culture, means engaging in different learning activities at the same time.²¹ For example, students report attending to off task behaviors such as checking email and texting while simultaneously taking lecture notes during class.²² Or, even worse, students may be using social media to review information unrelated to the classroom topic (for example, shopping online) while listening to and watching a PowerPoint. Students engaged in this behavior are not multi-tasking—they are task-switching.²³ Task-switching stops the learning process at the attention phase. When a student in a classroom setting switches between tasks, the result is decreased efficiency and slower reaction speeds in performing both tasks.²⁴ Depending upon the off-task behavior and the in-class material, the brain uses additional time and energy when task switching by picking up where it left off, or deciding which task to focus on.²⁵ When students task switch in class, they increase the potential for memory errors, lengthen the time required to learn, lessen the ability to recall and apply information to new situations, and expend time and energy refocusing when they

18. Levy, *supra* note 7, at 256.

19. *Id.* at 259.

20. See generally Talk of the Nation, *The Myth of Multitasking*, NPR (May 10, 2013), <https://www.npr.org/2013/05/10/182861382/the-myth-of-multitasking> [<https://perma.cc/QXM7-49TY>].

21. *Id.*

22. LANG, *supra* note 2, at 50-51.

23. Nina Golden, *Could you Repeat the Question? How Media Distractions Detract From Learning and a Courteous Classroom Environment*, 19 ATLANTIC L. J. 58, 69-76 (2017).

24. *Id.* at 79.

25. *Id.* at 72 (noting that “when attention is divided, the brain cannot process the information deeply. . . . [T]he bigger the distraction, the greater the detrimental effect on memory. Distractions cause shallower processing, which, in turn, results both in remembering less, and remembering for less time. . . . The student who uses their laptop to text a friend or engage in [online shopping] effectively chooses not to learn the material presented in class while engaging in those behaviors.” This results in a weaker memory of the material and less chance that the material can later be accurately retrieved.).

shift from one task to the next.²⁶ Thus, task switching upends and interrupts the learning process.

The evidence shows that digital devices with access to social media are specifically designed to constantly attract our attention. Students who are distracted during classroom time do not pay sufficient attention to the material. This results in a weakened ability to retrieve that information when they truly need it. This of course begs the question, what can be done about it?

PART II – CREATING PURPOSEFUL CLASSROOM TECHNOLOGY POLICIES

Digital devices in the classroom, while potentially distracting, are also learning tools for students. But, these devices, like all learning tools, should be integrated into the classroom experience in a thoughtful, deliberate manner. Viewing the use of digital devices through this lens and recognizing there is not a “one size fits all” solution to task switching behavior, faculty can create a digital device policy tailored to their classroom that acknowledges the challenges and opportunities for student learning. This is the strategy outlined in detail by Professor James Lang in his 2020 book *Distracted: Why Students Can’t Focus and What You Can Do About It*.

Lang emphasizes that before creating a policy, faculty need to understand how students experience using technology in the classroom. Many faculty assume that students are “digital natives” who automatically embrace technology use in the classroom.²⁷ However, the reality is more complex. Polling both students and professors on the use of digital devices in the classroom reveals an interesting dichotomy.²⁸ Forty-nine percent of student-respondents reported that they were distracted by other students engaging in off-task digital behavior in the class.²⁹ Even so, most student-respondents still wanted to use technology in the classroom *even if they were distracted*.³⁰ Furthermore, faculty respondents reported that students engaging in off-task digital behavior interfered with their teaching performance; however, professors also reported that they did not want to police off-task digital behavior.³¹ This creates a situation where everyone understands there is a problem, but no one wants to be responsible for solving it.

26. *Id.*

27. Levy, *supra* note 7, at 242.

28. LANG, *supra* note 2, at 62-64.

29. *Id.* (citing Elena Neiterman & Christine Zaza, *A Mixed Blessing? Students’ and Instructors Perspectives about Off-Technology Use in the Academic Classroom*, 10 CAN. J. FOR THE SCHOLARSHIP OF TEACHING AND LEARNING 1, 5 (2019)).

30. LANG, *supra* note 2, at 62.

31. Elena Neiterman & Christine Zaza, *A Mixed Blessing? Students’ and Instructors Perspectives about Off-Technology Use in the Academic Classroom*, 10 CAN. J. FOR THE SCHOLARSHIP OF TEACHING AND LEARNING 1, 6 (2019).

A potential solution, as suggested by Lang, is for faculty to create purposeful digital device policies that present students with concrete faculty expectations. Ideally, faculty create and communicate a digital device policy at the inception of the course term to establish transparent and consistent expectations for the use of digital devices in the classroom. The following is an examination of alternative policies that faculty have used to solve this issue, each with its advantages and drawbacks.³²

The Laissez-Faire Approach

Here, the professor allows use of digital devices in the classroom without faculty regulation.³³ Students use digital devices in the classroom as they wish without professor guidance or restriction about the use of the devices. This policy prioritizes the notion that students are adults, free to make their own decisions, and that given this freedom students will be good digital citizens in the classroom.³⁴ The laissez-faire approach has some positive attributes. It rests on the idea that giving adult students freedom to make their own decisions about using technology in the classroom results in the students making the best choices for themselves and their fellow classmates.³⁵ This, in turn, results in each student identifying what is best for their learning. However, there are drawbacks to this approach. First, a laissez-faire policy does not consider the extent to which social media has been engineered to hijack our attention.³⁶ Even the best educator, who works to keep students' attention, finds it challenging to keep the distraction of social media out of the classroom. Second, this policy provides no guidance to the students in the classroom. A policy-free classroom environment fails to recognize the negative impact that students engaging in off-task digital behavior have on other students' ability to attend to classroom material. Students report that they want transparent expectations from professors that regulate classroom behavior, and students view it as part of the professor's job to present clear policies that are equitably applied to regulate classroom behavior.³⁷ Without a clearly stated digital policy, students lack an ability to engage their faculty member regarding difficulties created by other students' off-task digital device use during class.³⁸

32. See LANG, *supra* note 2, at 64.

33. *Id.* at 64-67.

34. *Id.* at 64-65.

35. *Id.* at 65.

36. WU, *supra* note 9, at 318-26.

37. LANG, *supra* note 2, at 66-67.

38. *Id.* at 66.

The Total Ban

Here, the professor prohibits use of digital devices in the classroom.³⁹ This policy is the opposite of the first approach. Generally, the faculty member prohibits digital devices with exceptions for accommodated students. A total ban recognizes cognitive science research demonstrating the link between distracted learners, poor attention in the classroom, and diminished recall.⁴⁰ A total ban also recognizes that digital devices are the gateway to distractions not only for the student using the device and the students sitting around them, but also for the professor.⁴¹ However, there are negative implications to a complete prohibition. First, if the ban does not include exceptions for accommodated students, it deprives those students of the opportunity to be fully engaged in the classroom learning environment.⁴² Paradoxically, when a total ban includes an accommodation exception, it then presents an uncomfortable situation for students who prefer to keep that accommodation private, since it is clear which students requested accommodations.⁴³ Second, a total ban eliminates opportunities for learning when digital devices may be pedagogically useful.⁴⁴ In a typical legal skills classroom, there are situations where access to a digital device is useful and enhances the learning experience. For example, in a legal skills course, a research assignment where the students work in pairs to discover the most relevant secondary and primary sources using online research tools is not possible in a classroom with a complete prohibition.

The next two policies move much closer to a more flexible design which may be a more successful way of managing digital devices in a law school classroom.

The Student-Generated Policy

The student-generated policy is a collaborative effort between the students and the professor.⁴⁵ Here, students and faculty work together to create a digital device policy. This approach invites the student to be part of the process of

39. *Id.* at 67.

40. *Id.* at 68.

41. *Id.* at 62.

42. *Id.* at 68. In addition, failing to provide accommodations likely violates federal law as well as most internal university and law school policies. See Nicolette White, *Law School Students With Disabilities: What to Know*, U.S. NEWS & WORLD REP. (Feb. 17, 2023), <https://www.usnews.com/education/articles/law-school-students-with-disabilities-what-to-know> [https://perma.cc/GVH6-WXF4].

43. *Id.* (citing Rick Godden and Anne-Marie Womack, *Making Disability Part of the Conversation: Combating Inaccessible Spaces and Logics*, HYBRID PEDAGOGY (May 12, 2016), <https://hybridpedagogy.org/making-disability-part-of-the-conversation/> [https://perma.cc/394X-YTZC]).

44. LANG, *supra* note 2, at 68.

45. *Id.* at 71-75.

creating the classroom digital device policy.⁴⁶ Creating the policy becomes part of the classroom learning process. This approach has some advantages. First, it gives the professor an opportunity to share with the students the research on digital device distractions and learning.⁴⁷ Educating the students on the benefits and risks of their digital devices will help them make informed choices as they help craft the policy.⁴⁸ Second, this policy reflects that graduate-level students are adults and allows them to participate in creative solutions to complex problems.⁴⁹

However, a student-generated policy also has some drawbacks. First, with so many people involved in creating the policy, trying to craft a workable policy that considers multiple points of view may prove difficult.⁵⁰ The opposite side of this coin is also true. Students may be reluctant to “police” their fellow classmates’ behavior and reluctant to participate in creating a policy that is designed to do just that.⁵¹ Second, in the legal skills classroom, time limitations become a factor—especially in the first semester. The creation of a digital device policy is a complex task and can take up significant time both inside and outside of the classroom. If the time spent has pedagogical value in the legal skills context, this collaborative policy creation can be a useful tool. However, if it has a limited connection to the concepts being taught in that classroom, the student generated policy may result in loss of precious time from teaching other fundamental skills such as legal analysis or research.

The last policy choice advances this idea of flexibility but puts it more firmly in the hands of the professor while keeping some of the positive attributes of the student-generated policy.

The Context-Specific Policy

This policy, addressed in more depth in Part III of this article, builds flexibility into the digital device policy. Essentially, the professor creates a digital device policy that is context dependent. This means that the policy on using digital devices as part of the learning process will depend upon what learning activity is happening in the classroom.⁵² For example, when the students need to be focused on the professor, students will not use their digital devices. However, when students are doing group work or engaging with online

46. *Id.* at 71.

47. *Id.*

48. *Id.* at 71-72.

49. *Id.* at 73 (citing BARRY SCHWARTZ, *THE PARADOX OF CHOICE: WHY MORE IS LESS* 3 (HarperCollins ed., 1st ed. 2016)).

50. LANG, *supra* note 2, at 72-73. Furthermore, we find that this approach encourages buy-in from the students. If they trust the process, they will trust the policy.

51. *Id.* at 73-74. Lang specifically found that students were uncomfortable with providing rules that would be imposed on their peers.

52. *Id.* at 75-76.

sources, digital device use is allowed. This approach requires the faculty member to provide a written policy that is context specific and repeatedly referenced in class, so students know when digital devices should be used. As discussed next in Part III, the context-specific approach provides clear boundaries for digital device use and provides an evidence-based understanding as to why digital devices are allowed or disallowed depending upon the classroom task.⁵³

PART III - DEVELOPING AND IMPLEMENTING A CONTEXT-SPECIFIC POLICY FOR DIGITAL DEVICES IN THE LEGAL SKILLS CLASSROOM

In our view, a context-specific approach makes the most sense in the law school classroom, and specifically in the first-year skills class. According to ABA standards, legal skills courses are experiential.⁵⁴ While most legal skills courses include a traditional lecture, most faculty also incorporate experiential and group learning (i.e. “learning by doing”) to give students a fuller understanding of the concepts.⁵⁵ The context-specific approach integrates technology in a flexible and thoughtful manner. Many of our individual classes have students working with and without digital devices during the class period.⁵⁶ The students move seamlessly between lecture and group project or peer-review assignments using their digital device when needed to best complete the assignment. The context-driven approach also provides an ideal opportunity to discuss with the students the opportunities and drawbacks of using digital devices in the classroom.

This approach works best when the faculty member clearly and transparently communicates the reason for the policy as early as possible. The communication should include a discussion of the cognitive science research about distraction and learning.⁵⁷ A frank and open discussion about the need for a technology policy allows the students to see behind the curtain as to why the policy is necessary and how it will work. This discussion should specifically include the information about digital devices and social media and their unique ability to distract.⁵⁸ The myth of “multi-tasking” should also be included in this

53. *Id.*

54. *See* 2023-24 STANDARDS AND RULES OF PROCEDURE FOR APPROVAL OF LAW SCHOOLS § 303, 304 (AM. BAR ASS’N 2023).

55. An experiential class is a class that is set up for “learning by doing.” There is a lecture component, but there are also times when students will work on in-class assignments that expand on the concepts from the lecture.

56. For example, as stated earlier in this article, when introducing the topic of rule synthesis, we typically lecture on this concept and then divide the class into small groups and have them work on a rule synthesis project. We then come back together and follow up discussing both what was stated in the lecture and what was found in the small group project.

57. *See supra* Part I.

58. *See supra* Part I.

discussion about distracted learning.⁵⁹ While the context-driven approach, unlike the student-generated approach, is a top-down creation with less student input about the policy, it creates an opportunity for students to begin thinking mindfully about their technology use in any course.

As previously stated, the context-driven approach is a flexible model. Therefore, each faculty member can tailor their own classroom policy to fit their curricular needs. The following are two examples of our context-specific policy based upon our own classroom experiences.

Professor Marcia Goldsmith: My context-driven technology policy is part of my Class Information and Rule handout which the students receive prior to the first day of class.⁶⁰ I highlight the technology policy as part of the discussion during the first day of class. This gives me the opportunity to discuss the cognitive science research surrounding learning and distraction. During that class, I also hand out an Assignment Syllabus.⁶¹ This syllabus states the topic of the day, any reading requirements, and whether they will be using a digital device for class that day. On those days, clearly labeled in my Assignment Syllabus, the student is expected to have their digital device ready for use. I post a new Assignment Syllabus every 6 weeks and, with each new syllabus, I emphasize when they will need their digital devices for class. This acts as a reminder and an opportunity to reintroduce to the students the concepts behind why this policy was put in place. If a student is using a digital device when the Assignment Syllabus doesn't call for it, I gently remind the whole class that the current task will be completed without using a digital device. Continuously referencing the policy and the science behind that policy encourages best practices and aids in student buy-in.

Professor Karen Sanner: My approach is, in general, inclusive of digital device use in the classroom. Per Lang's suggestion in his text, I do not approach digital device usage in terms of prohibitions or bans. Instead, I generally allow digital devices, but I tell the students that the need for their device depends upon the classroom activity. My teaching style incorporates "chunks" of time for different activities throughout each class including lectures, completing exercises and polls, group work, and research. In those chunks of time, digital devices may be helpful but optional (lectures or group work) or mandatory (in-class online research). In general, I post all lecture material and exercises online, so students do not use print material for class unless they choose to print on their own. This means that, for most of my class time, students should have access to their laptop or tablet.⁶² To ensure that students use their digital devices

59. See *supra* Part I.

60. See *infra* Appendix 1: Goldsmith technology policy.

61. See *infra* Appendix 2: Excerpt from Goldsmith Assignment Syllabus.

62. This does not include the use of cell phones. In my Information Syllabus, I outline my digital device policy. In that Syllabus, I request that students put away their cell phones unless they

mindfully, on-task, and in a way that is not distracting for me or other students, I created a digital device contract. Drawing on a suggestion in Lang's text,⁶³ I drafted a contract specially tailored to the first-year legal skills classroom that includes the terms under which digital devices may be used by students in my classroom.⁶⁴ I provide this contract to my students during the first week of class and discuss it as part of a broader lecture on technology usage in the legal profession. The contract, mimicking Lang's suggestion, includes a discussion about digital devices and learning, attention, distraction, and the impact of off-task behavior for themselves, me, and their fellow classmates. Then, I refer to the contract with the digital device policy at various times during the semester, both as a reminder about the policy and as a continuation of our broader conversation about developing good behaviors related to technology use.

PART IV - TECHNOLOGY USE AND A BROADER CONVERSATION ABOUT PROFESSIONALISM

The context-driven technology policy also provides another benefit: the opportunity to encourage students to think mindfully about technology as they enter the legal profession.⁶⁵ Digital devices are an integral part of the practice of law.⁶⁶ Law students must begin the process of learning how to handle both the opportunities and the drawbacks of technology usage early in their legal career. The first-year legal skills class is an ideal place to start that learning process. By educating students on the pitfalls of task-shifting and social media distractions, and by encouraging the responsible use of digital devices, we will train this next generation of lawyers to pay attention in the classroom. This, in turn, helps to develop responsible use of digital devices when they enter the practice of law.

Cultivating Professional Attention

Legal skills professors play a significant role in the life of a first-year law student. In addition to teaching the basics of legal analysis, research, and communication, we also educate these students on the concepts of professionalism. Professionalism encompasses many different aspects of the practice of law, and many of these "soft skills" are integrated into the curriculum

request permission from me ahead of class time to engage with the cell phone for personal reasons only.

63. LANG, *supra* note 2, at 90-91. Lang provides an example of his digital device contract in the Appendix. *Id.* at 247-49.

64. See *infra* Appendix 2 for Saner Digital Device Contract.

65. See Murray, *supra* note 1, at 226-27.

66. *Id.* at 203 (citing an ABA technology survey from 2019 showing that half of practicing attorneys use tablets for practice-related work, 98% use mobile devices for practice-related work, and 73% use remote-access technologies for practice-related work).

of the legal skills class.⁶⁷ One of the most important “soft skills” is the ability to pay attention in a professional setting.⁶⁸ We know that students need to pay attention in class to be able to process and retrieve new information.⁶⁹ This need to pay attention does not change once a student graduates and becomes a practicing attorney.⁷⁰ In fact, listening skills are paramount to the attorney-client relationship. Learning the pitfalls of task-switching early in their legal studies can help students become attorneys who know when to shut down their digital devices and truly listen to their clients.⁷¹ Safe and effective technology usage is a skill that must be mastered to be an effective advocate and counselor for clients.

The Ethical Obligation for Technological Competence

Furthermore, in addition to grasping these “soft skills,” practicing attorneys have an ethical obligation of competency.⁷² ABA Model Rule 1.1 has long required attorneys to provide a certain level of “competent representation”, which means that attorneys must have the “legal knowledge, skill, thoroughness and preparation reasonably necessary for client representation.”⁷³ In 2012, the ABA amended Model Rule 1.1, by adding Comment 8 which requires attorneys to “keep abreast of . . . the law and [changes in] its practice” and specifically “the benefits and risks associated with relevant technology” as part of this duty of competent representation.⁷⁴ Comment 8 also requires lawyers to “engage in

67. See Sophie M. Sparrow, *Teaching and Assessing Soft Skills*, 67 J. LEGAL EDUC. 553, 554 (2018) (citing *Educating Tomorrow's Lawyers*, an initiative of the Institute for the Advancement of the American Legal System, which surveyed practicing lawyers to identify the top ten foundational skills for new lawyers entering practice. Those skills include 1) keeping client confidentiality, 2) being on time, 3) honoring commitments, 4) having integrity, 5) treating others with respect, 6) listening attentively, 7) responding promptly, 8) being diligent, 9) having a strong work ethic, and 10) paying attention to detail. ALLI GERKMAN & LOGAN CORNETT, *HIRING THE WHOLE LAWYER: EXPERIENCE MATTERS 1* (2017)).

68. See generally Lindsey P. Gustafson et al., *Teaching and Assessing Active Listening as Foundational Skill for Lawyers as Leaders, Counselors, Negotiators, and Advocates*, 62 SANTA CLARA L. REV. 3 (2022).

69. See *supra* Part I.

70. Murray, *supra* note 1, at 220.

71. See Megan Zavieh, *Distracted Lawyering*, ATT'Y AT WORK (Oct. 4, 2018), <https://www.attorneyatwork.com/distracted-lawyering/> [<https://perma.cc/FRC3-DN2W>].

72. MODEL RULES OF PRO. CONDUCT r. 1.1 (AM. BAR. ASS'N 2018).

73. *Id.*

74. *Id.* at cmt. 8. The full text of the comment is, “[t]o maintain the requisite knowledge and skill, a lawyer should keep abreast of changes in the law and its practice, *including the benefits and risks associated with relevant technology*, engage in continuing study and education and comply with all continuing legal education requirements to which the lawyer is subject” (emphasis added). The Commission suggested that this duty was implicit in Rule 1.1, but that it had decided to make the duty explicit to understand the “benefits and risks” of relevant technology.

continuing study and education” to maintain technological competence.⁷⁵ Furthermore, in 2017, the ABA adopted guidance for practicing attorneys regarding the continuing legal education necessary for maintaining technological competence.⁷⁶ This guidance requires attorneys to engage in continuing education to foster understanding about safe and effective technology use in law practice.⁷⁷ By the end of 2021, the Bar Associations in forty states also adopted some type of technology competency requirement.⁷⁸

These changes to the model rules recognize that practicing attorneys are just as susceptible to distraction, including the unique distractions of digital devices and social media, as the average law student.⁷⁹ The ABA emphasis on continuing education for practicing attorneys in technology competence should be reflected in the legal skills classroom. Introducing “safe and effective” ways to use technology in the legal skills classroom through clearly stated policies will benefit students by connecting their stewardship of technology in the classroom to their upcoming ethical obligations respecting technology in practice. The goal is to encourage students to adapt to and work with digital devices and other emerging technologies while emphasizing the importance of *effective* use of these tools. Early education and clear instruction in the classroom will help students develop good habits regarding technology while in law school. This, in turn, will help them navigate current and emerging technology as they enter into the legal profession.

PART V—CONCLUSION

In conclusion, human distraction is a constant presence and is necessary for human survival, but modern distractions such as digital devices and social media are uniquely designed to grab and keep our attention, resulting in the interruption of the learning process. While the simplistic response to remove the distraction is to ban digital devices from the classroom, we have found that a more nuanced approach is a better response to the problem. A policy that recognizes the opportunities and drawbacks of technology use in the law school classroom creates a more realistic learning environment. Developing and implementing a transparent, effectively communicated, and consistently applied digital device policy fosters learning in the classroom space and creates conversations about good technology stewardship in legal practice.

75. *Id.*

76. ABA MCLE Model Rule Implementation Resources, AM. BAR ASS’N, <https://www.americanbar.org/events-cle/mcle/modelrule/> [https://perma.cc/6XXM-MWF7].

77. *Id.*; see generally Murray, *supra* note 1, at 209.

78. Robert Ambrogi, *Tech Competence*, LAWSITES BLOG, <https://www.lawsitesblog.com/techcompetence/> [https://perma.cc/3XCC-E7VN].

79. See Zavieh, *supra* note 71.

APPENDIX 1

SAMPLE OF CLASS INFORMATION HANDOUT
CLASS INFORMATION AND RULES
LEGAL ANALYSIS, RESEARCH AND COMMUNICATION

Rule 3. Technology

Please note the following rules on use of **personal technology devices**:

- **Cell phones** must be placed on silent and placed out of sight during class. Students are not allowed to text during class or answer calls during class for any reason aside from a personal or family emergency. Violation of this policy will result in an unexcused absence.
- **Digital Devices will be used during this class but only on an “as needed” basis.** Focus and attention are important for this class. Attention is the first step a student must take to process information. When that first step is compromised it is difficult for the student to process the information and retrieve it later when needed. It is well documented that digital devices can be detrimental to a student’s ability to pay close attention. For these reasons digital devices will only be used in this classroom when they are specifically needed. Since this is an experiential class there will be occasions when the use of these devices is an important part of the learning process. This will be clearly indicated in the Assignment Syllabus provided to you on TWEN. If digital device use is not indicated students are encouraged not to use those devices. When digital devices are needed in class, students are expected to use them for class purposes only and any other use such as checking email, playing games, shopping, or social networking is not permitted under any circumstances. Students needing digital devices for purposes of disability accommodation will be allowed to use these devices but must see the Professor first.

SAMPLE

FALL ASSIGNMENT SYLLABUS

LEGAL ANALYSIS, RESEARCH AND COMMUNICATION

PART III

Week #10 Class 26 Tuesday, October 18	Research assignment #1 to be done on your own. Introduction continued The Osbeck steps 3rd assignment discussed in class.	Assignment #3 posted on TWEN Monday, October 17 Read, <i>Osbeck</i> - Introduction and Chapter 1-pp.1-22.
Class 27 Thursday, October 20	Introduction to Research-Osbeck step 1-search terms and research plans. Honor Code Review Discussion of Research Plan. Review Assignment #3.	Read, <i>Sloan</i> , Chapter 5-Case Research and Chapter 7-Statutory Research pp. 173-179, 191-206. Research Exercises digital devices will be in use.
Class 28 Friday, October 21	Review Assignment #3 continued Research using Secondary Sources. Developing a Research Plan	Honor Code Handout. Read <i>Osbeck</i> , Chapter 2-Consult Secondary Sources. Read <i>Sloan</i> , Chapter 2-Generating Search Terms; Chapter 4-Secondary Source Research pp. 43-51, 61-74. Secondary Source Exercises. Research Exercises digital devices will be in use. Research Plan Due via Canvas on Friday, October 21. Return on Monday of Fall break.

Week #11 Fall Break Tuesday, October 25	Fall break no class held	NO CLASS FALL BREAK
Class 29 Thursday October 27	Secondary Sources continued. Review Research Plan Discuss Annotated Outline Case law searching on Westlaw and Lexis.	Read <i>Osbeck</i>, Chapter 3- Conduct Your Search for Primary Authority. Read <i>Sloan</i>, Chapter 10- Electronic Legal Research. *In class exercises- <i>Research Exercises digital devices will be in use.</i>

Class 30 Friday, October 28	Research continued Discuss annotated outline. Case law searching on Westlaw and Lexis. Citators. Expanding and Updating your Research.	Annotated Outlines Due to T.A.s Friday, October 28 via email T.A.s return Annotated Outline via email Monday, October 31 *In class exercises- <i>Research Exercises digital devices will be in use.</i> Read <i>Osbeck</i>, Chapter 4- Expand and Update your Case Research.
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Week #12 Class 31 Tuesday, November 1	Research Assignment #2 to be done with T.A.s during office hours during this week Research Continued Annotated Outline Reviewed Review Instructions for Professor Draft	*In class exercises <i>Research Exercises digital devices will be in use.</i>
Class 32 Thursday, November 3	Organizing by Concept Thesis sentences 2 case Es and As.	<i>Aspen Handbook</i> , Chapter 7 pp. 177-179 Sample Memo handed out

APPENDIX 2

DIGITAL DEVICE POLICY STATEMENT & AGREEMENT
LEGAL ANALYSIS, RESEARCH, & COMMUNICATION

SANNER 2022-23

In this class, we will spend our time engaged in activities that depend upon you being present and attentive to me and to one another. Our digital devices—including laptops, tablets, and phones—can be useful learning tools, BUT they can also distract our attention and make it difficult to learn.

Information on Digital Device Usage in Education Settings

1. **Peer Learning.** Research demonstrates that when students engage in off-task behavior on digital devices during class, **it negatively impacts the learning of peers sitting near them.** In one study, students who were *not* using a device in a class lecture, but were repeatedly seated *within view of a peer with a device*, performed 17 percent worse on an assignment or exam than students who were not within view of someone else's device. The first purpose of this policy is to ensure that your devices are not negatively affecting the learning of your peers.
2. **Class Participation.** This class depends upon everyone's active participation and engagement. My job is to provide you with exposure to the course material and organize class in a manner that helps you learn. The class learns better when we hear your ideas! If you are focused on your device instead of your work, **you are depriving the entire class of your ideas and questions—both of which we want to hear.** Your participation contributes to active learning for the entire class.
3. **Active Listening.** Speaking to an audience that is not listening is demoralizing for the speaker. We respect everyone's voice by being present and actively listening to each other. Active listening cannot occur when we are attempting to multi-task on our digital device(s). Show respect to me, your classmates, and the learning process by using digital devices during class for sole purpose of engaging with the class material.

Based upon the previous policy statement, each student should read, sign, and return the following Digital Device Agreement. If you need a change to this Agreement due to a recognized disability accommodation, please see me as soon as possible. I will honor all accommodations and will follow the SLU Law disability policy in enacting and enforcing this agreement.

[TURN OVER FOR AGREEMENT]

LARC DIGITAL DEVICE AGREEMENT

1. I understand that I may use a laptop or tablet to read course material, access TWEN, and take notes during class when permitted by Professor Sanner.
2. I agree to close any non-course related tabs or apps—including email, social media, other communication platforms, or material related to other classes—during my class time in LRW. During class time, I agree not to access information outside of that needed for learning in LRW.
3. I agree to put my cell phone away during class except:
 - a) When Professor Sanner requires use of a cell phone for accessing course material; or
 - b) When I anticipate an emergency -family or personal- and have notified Professor Sanner in advance of class that my cell phone is needed for that emergency.
4. I agree to put my laptop or tablet away and take notes by hand when a “device-free” lecture or exercise is announced for the class. I understand that a portion of class may not require the use of a digital device, so I will close or put it away my devices when requested during device-free learning time.
5. During presentations by my classmates, I will give my full attention to the presentation, and I understand that I must close my digital devices and engage in active listening to the presentation.

I understand and agree to follow the **LARC Digital Device Agreement**.

Signed: _____

Print Name: _____

Date: _____